KAMU INNOVATIVE MART MINING SYNDICATE
Versus
CHIDAMBA INVESTMENTS (PRIVATE) LIMITED
And
RAINTREE GOLD THREE (PRIVATE) LIMITED
And
E. S MAKUMBE N.O
And
SECRETARY FOR MINES & MINING DEVELOPMENT
And
MINISTER OF MINES & MINING DEVELOPMENT

HIGH COURT OF ZIMBABWE
**MUZOFA J**
CHINHOYI,30 October & 25 November 2025

**Opposed Court Application**

*E. Mubayiwa,* for the applicant
*T. Zhuwarara,* for the 1st & 2nd respondents
*C. Chitekuteku,* for the 3rd - 5th respondents

**MUZOFA J:** [1] In terms of r59 of the High Court Rules,2021[1] a respondent who fails to file a notice of opposition and opposing affidavit in terms of the rules shall be barred.

[2] The subrule is couched in mandatory terms. The respondent remains barred. This provision means the respondent will not be heard by a court except for purposes of uplifting the bar.

[3] Where a party is barred, the matter is treated as unopposed in terms of r59 (26) unless the party so barred makes an application for the upliftment of the bar. See *GMB* v *Muchero* 2008 ZLR 216 S).

**Factual Background**

[4] The applicant and the 1st and 2nd respondents are duly registered entities operating mining activities in Mashonaland West. The 3rd – 5th respondents are cited in their official

[1] Subrules 6- 9 of the High Court Rules, 2021

capacities as the authorities responsible for the administration of the Mines and Minerals Act (Chapter 21:05).

[5] The applicant owns Forest 105 and 106 mining locations with Registration numbers 15449 and 15450 respectively. The 2nd respondent owns Forest 56 and 61 mining locations with Registration numbers 13583 and 13588 respectively. The two parties have running disputes over their mining locations and have been before the 3rd respondents for dispute resolution.

[6] On the 9th of July 2025 the 3rd respondent issued a determination that Forest 106 over pegged the 2nd respondent's mining claims. A notice of intention to cancel its registration certificate was issued. This is the decision that falls for review before this court. The main ground for review is that the applicant was not heard before the determination was made.

[7] The respondents opposed the application and the matter was duly set down for hearing.

[8] On the date of hearing, *Mr Mubayiwa* for the applicant raised three preliminary points but later abandoned one. The two that he insisted on are that the respondents are barred having filed their notice of response well after the *dies inducie*. The second point is that the 3rd respondent as the arbiter and decision maker must not defend his or her decision. He relied on the authority of *TM Supermarkets v Chimhini 2019 (2) ZLR 301* at paragraph 26 to 27 for the point taken.

[9] For the 1st and 2nd respondents *Mr Zhuwarara* took a different view and opposed the preliminary point taken on two fronts. Firstly, that the opposition was filed within the stipulated time on the 8th of August 2025. The objection is a technicality devoid of substance and merit.

[10] Secondly that even if there was non-compliance the applicant must have proceeded in terms of r43. Its failure to do so means it has lost the privilege to object to the proceedings.

[11] I deal with the preliminary points since they go to the root of the matter.

**Whether respondents are barred?**

[12] The issue before the court brings to the fore the interpretation of the term 'date of filing' in the wake of the Integrated Electronic Case Management System (IECMS). The main

objective of the IECMS system is to improve efficiency, transparency and accessibility. It is an enabler to the smooth and expedient administration of justice instead of a stumbling block.

[13] The issue turns on the simple question whether or not the 1st and 2nd respondents failed to comply with Rule 59 (8) of the Rules as to attract the consequence of the application being regarded as unopposed. The resolution of the matter involves a purely interpretative exercise.

[14] The date of filing is defined in the High Court (Amendment) Rules, 1 of 2023 (Statutory Instrument 153 of 2023) as follows:

> "…means the date on which any pleading envisaged by these rules is lodged with the Registrar".

[15] That definition must be read in conjunction with r4 on the "Registrar's office hours" which provides;

> "*Registrar's office hours*
> 4. (1) The office of the Registrar shall be open from 0830 to 1300 hours and from 1400 to 1600 hours every day which is not a Saturday, Sunday or public holiday.
> (2) The Registrar may, in exceptional circumstances, accept a document at a time outside office hours, and shall do so when directed by a Judge or the Chief Registrar in writing.
> (3) Litigants may electronically file documents at any time of the day, but—
> (a) process will only be accepted, that is to say issued out of the office of the Registrar, during office hours;
> (b) process will not be accepted if the filing is uncompliant with the *dies induciae* within which any act must be done as stipulated by these rules."

[16] There is no dispute that the *dies inducie* expired on the 8th of August 2025. According to the 1st and 2nd respondents, the notice of opposition was filed on the system on 8 August 2025 the same date they were linked. Further, that it was stamped on the 13th of August 2025 is an administrative technicality that should not prejudice the respondents.

[17] Ordinarily the procedure is that, once a respondent is served with process, they are required to request through the Registrar to be joined to the matter. I engaged the Registrar to provide information on the IECMS account for this case. The following is recorded. On the 8th of August at 14:05 a request by Whatman and Stewart Law firm was made under request number 177846 to be joined to the matter. The request was duly completed by the Registrar on the same date at 15:13 hours. The 1st and 2nd respondents' legal practitioners were therefore linked to the system from that time.

[18] On the same date at 16:23 hours, a notice of opposition was filed by the 1st and 2nd respondents' legal practitioners. The pleading was not processed until the 13th of August 2025. The deferment in dates was a result of a weekend and two days of holiday the Heroes Day and the Defence Forces National Day. The next working day was the 13th of August, that is when the Registrar duly processed the papers.

[19] Subrule 4 (1) is clear and needs no canons of interpretation. The literal rule to give words their literal meaning suffices. The Registrar can only accept and process pleadings between the set-out times unless there is an indulgence in terms of subrule (2) which has not been pleaded by the respondents. Valid filing of process is that which has been accepted and issued by the Registrar in terms of the Rules. Any process filed after 1600 hours has not been officially accepted and issued by the Registrar.

[20] The opposition by the 1st and 2nd respondents was filed on 8 August and issued on 13 August. For the purposes of *dies inducie* the opposition was issued out of time. This is not a technical/or administrative glitch as propounded for the respondents. When the respondents filed the notice, it was already out of time. Registry closes at 1600 hours, making a parallel with physical filing would unequivocally demonstrate the point. Had the respondent approached the office of the Registrar at 1623 hours, the pleadings would not have been accepted. They would have waited to file on 13 August 2025.

[21] That the electronic system is accessible 24 hours a day and pleadings can be uploaded or filed anytime is not synonymous with issuing of process. That is what is provided under R4(3). Uploading a pleading is different from the Registrar issuing the pleading. The *dies inducie* concerns itself with the date of filing which must be understood to mean the time the Registrar accepts and issues the pleading. It is the duty of the legal practitioner to make a request to be joined timeously, when they are still within the *dies* and file the pleadings accordingly.

[22] In this case the 1st and 2nd respondents' notice of opposition was therefore filed out of time. They are barred, nothing more. The notice of opposition is nullity. They can only be heard for purposes of uplifting the bar. See *The Sheriff of Zimbabwe v Coresoil Mining (Pvt) Ltd & Others HB125/18*. *Jakazi* v *Muzvondiwa* & Ors *HH 188/25.*

[23] Refence to r43 of the Rules is misplaced. That rule does not apply in the circumstances of this case. In any event the finding that a bar operates against the 1st and 2nd respondents means they cannot be heard on any issue no matter how ingenious.

[24] This was a technical noncompliance that could have been resolved by an application to be condoned. It seems that was not the preferred way to deal with the matter. Even so the court could not condone the respondents where such condonation was not requested. *Forestry Commission v Moyo 1997 (1) ZLR 254(S)*

[25] The preliminary point has merit and it is upheld.

**Whether the 3rd respondent can oppose the application?**

[26] The 3rd respondent filed an opposing affidavit. The 4th and 5th respondents did not file any opposing papers. The 3rd respondent swore to the opposing affidavit on his behalf only.

[27] It is the correct position that the person whose conduct is impugned in review proceedings should not defend his/her decision, that is "pitching camp with or taking sides in the dispute" as stated in the *TM Supermarkets* case (supra).

[28] The rationale is obvious, pitching camp with one side may be a clear sign of bias. Once the decision has been made the arbiter becomes *functus officio* and has no interest in it. It is for the parties to either support it or controvert it in another forum.

[29] That, however is not the end of the matter. The presiding officer can file an affidavit to clarify issues, to assist the court. They should be stated colourlessly not to take sides. See *Blue Ribbon Foods Ltd v Dube & Anor 1993 (2) ZLR 146 (S).*

[30] A presiding officer may respond to an application which can only be done under the cover of a notice of opposition. The affidavit must clarify issues not to delve into the merits of the case on why and how the decision was made. A presiding officer need not justify the decision made.

[31] In response to the point taken *Mr Chitekuteku* opined that since the 3rd respondent was cited he has the right to defend his decision. The response obviously failed to appreciate the need to streamline the opposition as stated in the *TM Supermarkets* case.

[32] In such cases Courts require the 3rd respondent's technical information being the administrative authority reposed with power over mines. However, the 3rd respondent's

affidavit is by no means colourless. The 3rd respondent literally straddled the boundaries and swam together with the parties. He simply took the stance that he is a litigant who must defend his decision.

[33] The applicant impugns the decision on the basis that it was not heard. The 3rd respondent detailed how the process was conducted and why the decision was made. In as much as that information assists the court to appreciate what transpired it would appear the tone and overall opposition shows the 3rd respondent is fighting in the 1st and 2nd respondent's corner. That as it maybe, I am unable to strike off the affidavit, it has relevant information to clarify issues. The court is at liberty to disregard the irrelevant information.

[34] Since the 3rd respondent cannot competently oppose the application on the merits, the affidavit stands to clarify issues only. It is unnecessary to delve into the merits as the application is not opposed. The real issue is between the applicant pitting the 1st and 2nd respondents who are barred.

[35] The applicant requested for costs on a higher scale against the 1st and 2nd respondents as it was unnecessarily put out of pocket. I do not agree to this punitive scale. The 3rd respondent has failed the parties in its handling of the matter. Nothing can be imputed on the respondents. The 19 September 2017 letter advised of the cancellation of Forest 106 and that Forest 105 was not under threat. The 9 July 2025 determination forming the subject of this application yet again proposes cancelation of Forest 106 Registration number 15450. It was submitted that there were errors in the identification of mining locations which can be ascertained from the office. Unless the 3rd respondent has not placed all the relevant information before the Court, what is before the court shows ineptitude by the office of the 3rd respondent creating unnecessary litigation for parties. The 3rd respondent is a central figure in mining disputes and must discharge its duties efficiently and above abode.

[36] In order for a litigant to successfully claim costs on the attorney and client scale, which is punitive, he/she must show some conduct beyond mere opposition by a litigant intent to defend their rights. Such conduct maybe some dishonesty behaviour, abuse of court process or where there is no valid defence and the opposition has been filed to harass the applicant. Nothing of that nature has been placed before the Court. What is before the Court is the 3rd respondent's inept discharge of duty. Cost must follow cause on the ordinary scale.

**Disposition**

[37] Since the real antagonists the 1st and 2nd respondents are barred. The matter stands as unopposed. The notice of opposition is a nullity. The 3rd respondent's opposition should be treated as a clarifying affidavit. The substantive issues are struck off. A presiding officer must not defend his or her decision. That is not to say they should not file opposition, but the affidavit requires some ingenuity to simply address the technical issues such as relates to the holders of valid certificates of registration, what was discovered where a ground verification was conducted.

Accordingly, the following order is issued;

1. The application be and is hereby granted.
2. The determination by the 3rd respondent dated 9 July 2025 is hereby declared irregular and is set aside.
3. Costs on an ordinary scale against 1st and 2nd respondents.

*Farai & Associates*, applicant's legal practitioners
*Messrs Whatman & Stewart*, 1st & 2nd respondents' legal practitioners
*Civil Division Attorney General's Office*, 3rd – 5th respondents' legal practitioners